

Press Council Act, 1991

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Press Council Act, 2048

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Amending Acts

1. Act to Amend Certain Nepal Acts Relating to Communication, 2057 2057.10.18
2. Act to Revive the Provisions of Certain Nepal Acts, 2063 2063.04.23
3. Act to Consolidate the Republic and Amend Certain Nepal Laws, 2066 2066.10.07
4. Act to Amend Certain Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 25 of the year 2048

An Act Made to Establish and Manage a Press Council

Preamble: Whereas it is expedient to establish and manage a Press Council for the development and promotion of healthy, free, and responsible journalism by maintaining the highest professional conduct of journalism,

This Act is made by the Parliament in the twentieth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Press Council Act, 2048".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Council" means the Press Council established pursuant to Section 3.

(b) "Member" means a member of the Council and includes the Chairperson of the Council.

(c) "Committee" means the Newspaper Circulation Audit Committee constituted pursuant to Section 10.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules or regulations made under this Act. 3. Establishment of a Press Council: A Press Council shall be established for the development of healthy journalism. 4. Council to be an Autonomous Body: (1) The Council shall be an autonomous and corporate body with perpetual succession.

(2) The Council shall have its own separate seal for all its acts and business.

(3) The Council may, like an individual, acquire, use, sell, or otherwise manage movable and immovable property as required.

(4) The Council may sue and be sued in its own name. 5. Objectives of the Council: The objectives of the Council shall be as follows:-

- (a) To create a suitable environment for the development of healthy journalism,
- (b) To prescribe a code of conduct relating to journalism to prevent the abuse of press freedom,
- (c) To maintain harmonious relations between the press and the Government of Nepal,
- (d) To cause the maintenance of public morality and the dignity of citizens, and
- (e) To remain active in preventing interference with the freedom of the press and the dignity of journalism. 6.

Constitution of the Council: (1) The Government of Nepal shall constitute the Council, and the Council shall consist of the following persons:- Amended by the Act to Amend Certain Nepal Acts Relating to Communication, 2057.(a) A person nominated by the Government of Nepal from among retired judges of the Supreme Court or senior advocates or persons who have made a distinguished contribution to the field of newspapers - Chairperson Deleted by the Act to Consolidate the Republic and Amend Certain Nepal Laws, 2066.(b) Deleted by the Act to Consolidate the Republic and Amend Certain Nepal Laws, 2066.(c) Added by the Act to Amend Certain Nepal Acts Relating to Communication, 2057.(c1) President, Nepal Federation of Journalists - Member (d) Six persons nominated by the Government of Nepal, in consultation with journalist associations, from among journalists, editors, and publishers, at the rate of two persons from each field - Member (e) One person nominated by the Government of Nepal from among working journalists - Member (f) One person nominated by the Government of Nepal from among persons who have made a distinguished contribution to journalism and various other fields - Amended by the Act to Amend Certain Nepal Acts Relating to Communication, 2057.Member (g) One person nominated by the Government of Nepal from among journalists recommended by institutions related to literary journalism - Member (h) Director General, Department of Press and Information - Member Secretary (2) The term of office of the Chairperson and members of the Council shall be 4 years. (3) If the Chairperson or any member wishes to resign before the expiration of the term of office, the Chairperson may submit a written resignation to the Government of Nepal, and a member may submit a written resignation to the Chairperson. 7. Functions, Duties, and Powers of the Council: The functions, duties, and powers of the Council shall be as follows:- (a) To observe the policy relating to journalism from time to time and, after consulting the relevant field, to provide suggestions to the Government of Nepal, (b) To prepare and implement a code of conduct relating to journalism for the development of healthy journalism, (c) To provide suggestions to the Government of Nepal for the development of journalism, (d) To maintain up-to-date records of the circulation status of newspapers, (e) To conduct necessary proceedings in respect of a matter relating to news published in a newspaper if any person files a complaint with the Council, (f) To submit an annual report to the Government of Nepal including a study and evaluation of the activities and factual situation of newspapers, and (g) To inquire into anti-social and objectionable matters published in newspapers. 8.

Meetings and Decisions of the Council: (1) The Member Secretary shall convene a meeting of the Council on the direction of the Chairperson. (2) If fifty percent of the total number of members of the Council are present, it shall be deemed to constitute a quorum for the meeting. (3) The Chairperson shall preside over the meeting of the Council, and in his/her absence, a member elected by the members present at the meeting from among themselves shall preside over the meeting. (4) In a meeting of the Council, the opinion of the majority of the members present on each subject under consideration shall be accepted, and in the case of a tie, the Chairperson shall cast the deciding vote. (5) Decisions of the Council shall be certified by the Member Secretary. (6) Other procedures relating to the meetings of the Council shall be as determined by the Council itself. 9. Sub-Committee: (1) The Council may constitute a sub-committee for the smooth conduct of its work. (2) The functions, duties, powers, and procedures of a sub-committee constituted pursuant to Sub-section (1)

shall be as prescribed by the Council. 10. Newspaper Circulation Audit Committee: (1) The Government of Nepal shall, in consultation with the Council, constitute a Newspaper Circulation Audit Committee. (2) The Committee constituted pursuant to Sub-section (1) shall consist of the following members:- (a) Press Registrar - Chairperson (b) Representative, Amended by the Act to Amend Certain Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. Ministry of Communication and Information Technology - Member (c) Representative, Press Council - Member (d) Three persons nominated by the Government of Nepal, at the rate of one person each from the Audit Association, the Advertising Association or Agencies, and commercial or industrial organizations - Member (3) The officer designated by the Council shall be the Secretary of the Committee. (4) The term of office of the members nominated pursuant to Clause (d) of Sub-section (2) shall be two years. 11. Functions, Duties, and Powers of the Committee: (1) The functions, duties, and powers of the Committee shall be as follows:- (a) To determine the circulation number based on the circulation status of newspapers and to maintain up-to-date records thereof, and (b) To classify newspapers based on, among other things, their circulation number. (2) Other than as mentioned in Sub-section (1), the other functions, duties, and powers of the Committee shall be as prescribed. 12.

Regarding Complaints: (1) If any journalist violates the professional code of conduct, any person may file a complaint with the Council. (2) Upon receipt of a complaint pursuant to Sub-section (1), the Council may, after making necessary inquiry, do or cause to be done the following:- (a) Cause the statement of the aggrieved party to be published in the relevant newspaper, (b) Cause an apology to be made to the aggrieved party and cause the matters of that party to be published in the relevant newspaper, (c) Cause any comment, article, or publication material of the aggrieved party to be published in the relevant newspaper, and (d) Recommend to the Government of Nepal to suspend, in whole or in part, the concessions or facilities obtained by a journalist who repeatedly violates the professional code of conduct from the Government of Nepal for a prescribed period. (3) If a journalist fails to comply with a decision of the Council under Sub-section (2), the Council may express regret and cause that matter to be publicly published. (4) Before making a decision under Sub-section (2) or (3), the Council shall give the concerned journalist an opportunity to submit an explanation. 13. Fund of the Council: (1) The Council shall have a separate fund. (2) The fund referred to in Sub-section (1) shall consist of the following amounts, and all expenses of the Council shall be borne from that fund:- (a) Amount received from the Government of Nepal, (b) Amount of financial grants or assistance received from foreign governments or organizations, (c) Amount received by the Council from any other source. (3) Before obtaining financial grants or assistance pursuant to Clause (b) of Sub-section (2), the Council shall obtain the permission of the Government of Nepal. (4) The operation of the fund of the Council shall be as prescribed. 14. Accounts and Audit: (1) The accounts of income and expenditure of the Council shall be kept in accordance with the prevailing law. (2) The audit of the Council shall be conducted in accordance with the prevailing law. (3) The Government of Nepal may, at any time it so desires, inspect or cause to be inspected the accounts of the Council. 15. Delegation of Powers: The Council may delegate the powers conferred on it under this Act to a committee, sub-committee, member, or any officer of the Council. 16. Contact with the Government of Nepal: While contacting the Government of Nepal, the Council shall do so through Amended by the Act to Amend Certain Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075. the Ministry of Communication and Information Technology. 17.